

Tentative Rulings for July 23, 2026, Probate Calendar

**Judge James T. Chou
Department C**

**APPEARANCES MAY BE MADE
IN PERSON
OR ON ZOOM.**

To Join a Zoom Meeting, please follow this link: www.marin.courts.ca.gov

- 1. Click on the “Virtual Courtrooms” icon and then on “Zoom Civil / Family / Probate Court Calendar Appearance Information”**
- 2. Scroll down to Department C – Probate for the connection information.**

Any interested party who wishes to appear for oral argument on the tentative ruling must do the following no later than 4:00 PM one Court day prior to the scheduled hearing date (MCR 6.2.D):

- 1. Notify all other parties entitled to notice of the underlying petition, including the attorneys for represented parties; and**
- 2. Advise the clerk’s office by leaving a message at (415) 444-7046, option 5.**

There is no need to inform the Court of your intent to appear if the tentative ruling requires an appearance.

PLEASE NOTE: Probate cases that are designated as confidential by California law will not be posted online. For tentative rulings in those matters, please contact the judicial secretary at (415) 444-7260. Confidential cases include applications for Special Immigrant Juvenile Status.

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Judge James T. Chou
Department C
9:00 Calendar

CV0000843 IN THE MATTER OF SAMUEL MATTHEW GOLDBERGER

Amended Motion to Compel Issuance of Written Orders and Entry of Judgment; Allegations of Judicial Misconduct, Fraud, and Civil RICO, filed by Judah Bell on 2/13/26.

Ruling. This motion is without merit and is **denied in full**.

PR0001163 IN THE MATTER OF DUANE ALLAN NIX

Report of Status of Administration and Petition for Approval of Report and Request to Extend Time in which to Close the Estate, filed by Jason Allen Tindell on 6/9/26.

Ruling. Absent objections, the Report of Status of Administration is **accepted and approved**. Personal Representative is ordered to comply with the following future dates:

1. Status on Closing Estate.
 - a. Either: (1) a Petition for Final Distribution; or (2) a Report of Status of Administration shall be filed by August 31, 2026, as required by Probate Code sections 12200-12201.
 - b. A status hearing re filing the Petition or Report shall be set on September 17, 2026, at 10:00 a.m.
 - i. If neither document has been timely filed, an appearance will be required.
 - ii. If the Petition or Report is timely filed, the hearing will be set on September 17, 2026, at 9:00 a.m.

PR0001263 IN THE MATTER OF LINDA E. DUNN

First and Final Account and Report of Executor and Petition for Its Settlement; for Allowance of Statutory Attorney Fees, and for Final Distribution, filed by Catherine Spain on 6/26/26.

Ruling. Absent objections, this Petition will be **granted without hearing**.

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PR0001315 IN THE MATTER OF THE JOSEPH ABRAHAM AND ADELAIDA SERBANESCU FAMILY TRUST

Motion for Order Quashing Deposition Subpoenas and Staying Depositions, filed by Ion Cristian Abraham on 1/15/26.

Ruling. In light of the appeal filed in this case, this matter is **continued to September 24, 2026, at 9:00 a.m.** for status of appeal.

PR0001389 IN THE MATTER OF THE GREVESMUEHL-YOUNG REVOCABLE TRUST UDT 06/19/2009

1. Verified Petition for Order: (1) Determining claim to Trust Property (Probate Code § 850); (2) Cancellation of Void Instrument (Civil Code § 3412); (3) Imposition of Constructive Trust; (4) Financial Elder Abuse; (5) Double Damages (Probate Code § 859); (6) Accounting and Surcharge; (7) Fraud, filed by Maria L. Mandolini on 4/15/26.
2. Verified Petition for Orders: (1) Determining Claim to Trust Property (Probate Code § 850); (2) Cancelling Void or Voidable Instruments (Civil Code § 3412); (3) Quiet Title and Declaratory Relief; (4) Financial Elder Abuse; (5) Fraud; (6) Undue Influence; (7) Constructive Trust; (8) Accounting; (9) Negligence; (10) Temporary Restraining Order and Order to Show Cause Re Preliminary Injunction to Enjoin Collection, Default, Foreclosure, Assignment, Servicing Transfer, Adverse Credit Reporting, and Enforcement Activity Regarding 10 Warrens Way, Tiburon, California; and (11) Related Equitable Relief, filed by Maria L. Mandolini on 5/18/26.

Ruling. Both petitions are **continued to September 10, 2026, at 9:00 a.m.** for filing proof of service confirming that thirty days' notice was served in compliance with Probate Code section 17203, subd. (b) ("in the manner provided in Chapter 4 (commencing with Section 413.10) of Title 5 of Part 2 of the Code of Civil Procedure on any person, other than a trustee or beneficiary, whose right, title, or interest would be affected by the petition...").

PR0001749 IN THE MATTER OF THE COLEMAN FAMILY TRUST

Verified Petition to Remove Trustees; Appoint Professional Fiduciary; Invalidate Trust Amendment; Compel Accounting; Impose Constructive Trust; and for Surcharge, filed by Michael E. Coleman on 4/1/26.

Ruling. **Counsel Nicole C. Kelly and John H. Cigavic III are ordered to appear.**

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PR0001775 IN THE MATTER OF JOE WAHNSIEDLER

Amended Petition for Probate of Lost Will and for Letters Testamentary, filed by Helene Robertson on 7/9/26.

Ruling. This matter is **continued to August 13, 2026, at 9:00 a.m. Petitioner is ordered to file** Proof of Service showing that all interested parties received at least fifteen days' notice of the Amended Petition on the mandatory form "Notice of Petition to Administer Estate." (Judicial Council Forms, form DE-121; Prob. Code, § 8110; Cal. Rules of Court, rule 7.53(a).)

PR0001814 IN THE MATTER OF ALAN WILSON

Spousal Property Petition, filed by Susan Wilson on 5/18/26.

Ruling. Absent objections, this Petition will be **granted without hearing.**

PR0001818 IN THE MATTER OF DONALD A. WELLS REVOCABLE TRUST

Trustee's Petition for Instructions Re: (1) Notice of Proposed Action; (2) Interpretation of Terms of Trust and to Determine Distribution of Property, filed by Michael D. Robinson on 5/19/26.

Ruling. On July 17, 2026, Leighton Hills filed an opposition to the petition. Petitioner/Successor Trustee Michael D. Robinson is **ordered to file any reply by August 17, 2026**, or the right to do so is waived. The parties are **ordered to meet and confer** in person, via telephone, or by virtual meeting to discuss informal resolution of this petition. The matter is **now set for September 3, 2026, at 9:00 a.m. in Department C** for status re meet and confer, and for further setting.

PR0001819 IN THE MATTER OF KENNETH JOHN BARBIERI TRUST

Petition to Confirm Trust Assets and to Rescind Deed, filed by Eric Halsing on 5/20/26.

Ruling. Absent objections, this Petition will be **granted without hearing.** Petitioner is **ordered to submit** a proposed Order to the Court within five court days of this order. (Super. Ct. Marin County, Local Rules, rule 6.2(C), Submission of Proposed Orders.)

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PR0001821 IN THE MATTER OF THE FRANKLIN C. WILSON 2024 TRUST DATED APRIL 29, 2024

Petition for Order Confirming Trust Assets, filed by Elizabeth Wilson Peer on 5/21/26.

Ruling. This matter is **continued to September 10, 2026, at 9:00 a.m.** Petitioner is **ordered to file the following** at least five court days prior to the hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)

1. Supplement to Petition, signed and verified by Petitioner, providing the names and addresses of all heirs-at-law of Trustor. (Prob. Code, §§ 17203(b) and 6402 et seq.)
2. Proof of Service showing that all parties named in response to Issue 1 received at least thirty days' notice of the Petition on the mandatory form "Notice of Hearing on Petition to Determine Claim to Property." (Judicial Council Forms, form DE-115.)
3. **Note** that notice to anyone who is not a beneficiary of the Trust must be served in the manner set forth by Code of Civil Procedure section 413.10, et seq. (Prob. Code, § 17203(b).)

PR0001864 IN THE MATTER OF TERRENCE A. LARSEN

Spousal Property Petition, filed by Carolyn Kelly Larsen on 6/22/26.

Ruling. This matter is **continued to August 20, 2026, at 9:00 a.m.** Petitioner is **ordered to file the following:**

1. Attachment 7 to the Spousal Property Petition ("The facts upon which petitioner bases the allegation that the property described in Attachments 7a and 7b is property that should pass or be confirmed to the surviving spouse..."). If Petitioner requests that Decedent's share of the community property pass to her pursuant to the Spousal Property Petition, instead of being distributed to the Terrence A. Larsen Revocable Trust pursuant to Decedent's Will, please also provide legal authority.
2. The Attachment must be filed at least five court days prior to the hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)

PR0001870 IN THE MATTER OF MICHAEL S. VISNICK

Petition for Probate of Will and for Letters Testamentary, filed by Paul A. Salvagiona aka Paolo Salvagione on 6/26/26.

Ruling. This matter is **continued to August 20, 2026, at 9:00 a.m.** Petitioner is **ordered to file the following:**

1. Supplement to Petition, signed and verified by Petitioner, that provides more information with regard to:
 - a. The relationship of Decedent's niece, Anne Visnick. Ex: John Doe, son of Decedent's predeceased sister, Jane Doe.
 - b. Relationship, age, and address for each of the following parties named in Decedent's Will:
 - i. Larry Visnick

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- ii. Alex Shaw
 - iii. Lavis Mills
 - iv. Teresa (no last name)
2. Proof of Service showing that all parties named in response to Issue 1 received at least fifteen days' notice of the Petition on the mandatory form "Notice of Petition to Administer Estate." (Judicial Council Forms, form DE-121; Prob. Code, § 8110.)
3. All documents must be filed at least five court days prior to the hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)

PRO042729 THE GRAHAM SALTONSTALL SPECIAL NEEDS TRUST, IN THE MATTER OF

Petition to Approve Twelfth Account and Report of Trustee from 2/1/24, Through 1/31/26, and to Confirm Trustee's and Trust Advisory Committee Member Fees; and Approve Attorneys' Fees, filed by Westamerica Bank on 6/8/26.

Ruling. **The parties are ordered to appear.**

PRO2002412 IN RE ROBERT D. WOLFE LIVING TRUST AS AMENDED AND RESTATED

Independent Trustee's Motion to Approve Fees Incurred from February 2026 Through April 2026 as Reasonable, filed by Susan Zeme on 6/18/26.

Ruling. **The parties are ordered to appear.**

PRO2201880 IN RE THE AUDREY CALDARA SPECIAL NEEDS TRUST, TRUST OF

Seventh Account and Report of Trustee and Petition for Its Settlement, and for Allowance of Trustee's Fees and County Counsel's Fees, filed by Marin County Public Guardian on 7/16/26.

Ruling. This matter is **continued to August 27, 2026, at 9:00 a.m. Petitioner is ordered to:**

1. Mail notice to all interested parties using the mandatory Judicial Council Form "Notice of Hearing – Decedent's Estate or Trust," (Judicial Council Forms, form DE-120.)
2. File a copy of the DE-120 that was mailed, with the Proof of Service completed on page 2 showing that all interested parties received **at least thirty days' notice** of the Seventh Account. (Prob. Code, § 17203.) The Proof of Service must be filed at least five court days prior to hearing. (Super. Ct. Marin County, Local Rules, rule 6.2(b), Filing, Hearing, and Continuance Procedures.)

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Judge James T. Chou
Department C
10:00 Calendar

PR0001462 IN THE MATTER OF DAVID S. MARTIN

Order - Show Cause – Dismiss

Ruling. Personal representative Nancy Martin and attorney Bryn Davies are **ordered to appear**.

PR0001533 IN THE MATTER OF JOSEPH MAXWELL MABELITINI

Status Conference – Filing of Final Inventory and Appraisal

Ruling. Personal representative Sophia Mabelitini is **ordered to appear**.

PR0001582 IN THE MATTER OF DIANA MORELL

Status Conference - Filing of Final Inventory and Appraisal

Ruling. Personal representatives Juliette Boyd and Gerry Bisson and attorney Myron Greenberg are **ordered to appear**.

PR0001610 IN THE MATTER OF JEFFREY ANKER

Status Conference - Filing of Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

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PR0001624 IN THE MATTER OF STEVEN CHALLIS PODESTA

Status Conference - Filing of Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PR0001626 IN THE MATTER OF RITA JAULUS

Status Conference - Filing of Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PR0001637 IN THE MATTER OF WILLIAM FRANKLIN BURDICK

Status Conference - Filing of Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PR0001638 IN THE MATTER OF THERESA SHIFS

Status Conference - Filing of Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PR0001643 IN THE MATTER OF CYNTHIA ANN SOFFIOTTO

Status Conference - Filing of Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PR0001648 IN THE MATTER OF PATRICIA HIBBS

Status Conference - Filing of Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; the Final Inventory and Appraisal has been filed.

PR0001650 IN THE MATTER OF JOY CHRISTINA MACKAY

Status Conference - Filing of Final Inventory and Appraisal

Ruling. Personal representatives Andrew Mackay and Sarah Mackay and attorney Daniel Newbold are **ordered to appear**.

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PRO2204000 WILLIAM JOSEPH CASTAGNARO, ESTATE OF

Petition - Filing of Final Inventory and Appraisal

Ruling. Personal representative Kelly Castagnaro and attorney Nancy Lofdahl are **ordered to appear**.

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Judge James T. Chou
Department C
1:30 Calendar

PR0000871 IN THE MATTER OF MONROE JAMES GROSHONG NAKO 'OKA

Amended First Account Current and Report of Guardian of the Estate; Petition for Approval and Settlement of Account, filed by Le Ann Crosser Groshong on 7/8/26.

Ruling. Absent objections, the Amended First Account and Report of Guardian of the Estate will be **granted without hearing**. Guardian is **ordered to comply** with the following future dates:

1. Guardian's Second Account and Report for the period 3/29/26 – 3/28/28 shall be filed by June 15, 2028.
2. A status hearing re filing the Second Account and Report shall be set on July 13, 2028, at 1:30 p.m.

PR0000978 IN THE MATTER OF CAROLYNN ANITA STARR

Status Conference - Filing the First Account or explanation as to why it was not timely filed

Ruling. Conservator Aubry Loch Ekstrom is **ordered to appear**.

PR0001329 IN THE MATTER OF YARI ADIEL SOLIS

Status Conference - Confidential Conservatorship Care Plan

Ruling. Conservator Sonia Floridalma Gutierrez is **ordered to appear to show why**: (1) an OSC should not issue against Conservator Sonia Floridalma Gutierrez for failure to abide by this Court's March 12, 2026, order; and (2) an OSC should not issue as to why Conservator should not be suspended.

PR0001447 IN THE MATTER OF MICHAL ROONEY

Status Conference - Confidential Conservatorship Care Plan

Ruling. Conservator Narayan Berliner is **ordered to appear**.

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PR0001506 IN THE MATTER OF LORRAINE K. JOHNSON

Status Conference - Confidential Conservatorship Care Plan; Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; all required documents have been filed.

PR0001584 IN THE MATTER OF CARLOS VICTOR PLASMAN

Status Conference - Confidential Conservatorship Care Plan; Final Inventory and Appraisal

Ruling. This matter is ordered **off calendar**; all required documents have been filed.

PR0001600 IN THE MATTER OF THOMAS RIO SEILER

Status Conference - Confidential Conservatorship Care Plan

Ruling. This matter is ordered **off calendar**; all required documents have been filed.

PR0001815 IN THE MATTER OF LORREN LEE TONER

Petition for Appointment of Probate Conservator of the Person and Estate, filed by Shiela Lisa O'Neill on 5/18/26.

Ruling. **The parties are ordered to appear.**

If the Petition is granted, Conservator is **ordered to comply** with the following future dates:

1. Confidential Conservatorship Care Plan.
 - a. A status hearing for the filing of the mandatory Confidential Conservatorship Care Plan shall be set on October 29, 2026, at 1:30 p.m. (Judicial Council Forms, forms DE-355 and DE-356.)
 - b. An appearance will be required on that date if the Confidential Conservatorship Care Plan is not filed at least five court days prior to the hearing.
2. Final Inventory and Appraisal.
 - a. A status hearing for the filing of the Judicial Council Form "Final Inventory and Appraisal" shall be set on October 29, 2026, at 1:30 p.m. (Judicial Council Forms, form DE-160.)
 - b. An appearance will be required on that date if the Final Inventory and Appraisal is not filed at least five court days prior to hearing.
3. First Account.
 - a. Conservator is to file the First Account for the period ending July 22, 2027, by September 30, 2027.
 - b. A hearing shall be set for November 12, 2027, at 1:30 for either:
 - i. Hearing on the First Account; or
 - ii. Explanation as to why it was not timely filed.

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PR0001816 IN THE MATTER OF LESLIE GOULD

Petition for Appointment of Probate Conservator of the Person and Estate, filed by Marin County Public Guardian on 5/14/26.

Ruling. The parties are ordered to appear.

If the Petition is granted, Conservator is **ordered to comply** with the following future dates:

1. Confidential Conservatorship Care Plan.
 - a. A status hearing for the filing of the mandatory Confidential Conservatorship Care Plan shall be set on October 29, 2026, at 1:30 p.m. (Judicial Council Forms, forms DE-355 and DE-356.)
 - b. An appearance will be required on that date if the Confidential Conservatorship Care Plan is not filed at least five court days prior to the hearing.
2. Final Inventory and Appraisal.
 - a. A status hearing for the filing of the Judicial Council Form "Final Inventory and Appraisal" shall be set on October 29, 2026, at 1:30 p.m. (Judicial Council Forms, form DE-160.)
 - b. An appearance will be required on that date if the Final Inventory and Appraisal is not filed at least five court days prior to hearing.
3. First Account.
 - a. Conservator is to file the First Account for the period ending July 22, 2027, by September 30, 2027.
 - b. A hearing shall be set for November 12, 2027, at 1:30 for either:
 - i. Hearing on the First Account; or
 - ii. Explanation as to why it was not timely filed.

PR0001862 IN THE MATTER OF MARY CATANIA

Petition for Appointment of Temporary Conservator of the Person, filed by Kathleen Ann Ellis on 6/30/26.

Ruling. The parties are ordered to appear.

PRO085820 KEVIN O'KEEFE, CONSERVATORSHIP OF THE PERSON AND ESTATE

Ninth Account and Report of Conservator and Petition for Its Settlement, and for Allowance of Conservator's Commission and County Counsel's Fees, filed by Marin County Public Guardian on 6/10/26.

Ruling. Absent objections, the Ninth Account and Report of Conservator will be **granted without hearing.** Conservator is **ordered to comply** with the following future dates:

1. Conservator's Tenth Account for the period 4/1/26 – 3/31/28 shall be filed by June 15, 2028.
2. A status hearing re filing the Second Account and Report shall be set on July 27, 2028, at 1:30 p.m.

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Petition for Exclusive Authority to Give Consent for Medical Treatment, filed by David Freedheim and Douglas Freedheim on 6/11/26.

Ruling. The parties are ordered to appear.
